IT is hereby notified that the National Prosecuting Authority of Zimbabwe has in terms of section 30 of the National Prosecuting Authority Act [*Chapter 7:20*], made the following regulations with the concurrence of the Minister of Justice, Legal and Parliamentary Affairs—

1. These regulations may be cited as the National Prosecuting Authority (General Conditions of Service) (Amendment) Regulations, 2025 (No. 2).

2. These Regulations shall become effective on the date of their publication in the Government *Gazette*.

3. The National Prosecuting Authority (General Conditions of Service) Regulations, 2015, published in Statutory Instrument 85 of 2015, are amended by the repeal of section 16 ("Pensionable age of retirement") and section 17 ("Retirement before reaching pensionable age") and the substitution of the following—

"Pensionable age, retirement and mandatory retirement

16. (1) Subject to section 17 a member appointed on pensionable terms of service—

(a) before the effective date, may have a pensionable age of sixty-five years unless, before attaining that age, the member exercises the option to continue in office until he or she reaches the age of seventy, when they must retire on full pension.:

Provided that the exercise of the option to continue until the age of seventy shall be subject to—

(i) the submission to, and the acceptance by the Board, of a medical report as to the mental and physical fitness of the member to continue in post; and

(ii) the Board determining that it is in the best interests of the Authority to permit the member to continue to serve the Authority, until such member reaches the age of seventy.

(b) after the effective date, shall have a pensionable age of seventy years.

(2) Any retirement after the year of sixty-fifth anniversary and before the seventieth anniversary shall be deemed to be early retirement; or

(3) A member's pensionable age shall be recorded on the member's record of employment for pension purposes.

(4) The Paymaster shall, on the 1st June each year, provide the Board with a list of members who will reach the age of sixty, sixty-five or seventy years during the ensuing year.

(5) The Board may, when it is in the interest of the Authority to do so, permit a member whose pensionable age is seventy to continue to serve beyond the age of seventy for periods not exceeding one year at a time, provided that such member shall retire at the age of seventy-five years.

"Retirement before reaching pensionable age

17. (1) A member may, on giving three months' notice of retirement, be permitted by the Board to retire before pensionable age at any time after attaining the age of sixty.

(2) The Board may, on giving the equivalent appropriate period of notice prescribed under section 14 (2) for the resignation of a member, require a member to retire on or after the date on which such member attains the age of sixty.

(3) The Board may require a member to retire if, after having undergone a medical examination by a medical board appointed by the Secretary for Health, such member is found permanently unfit to carry out the duties of his or her post.

(4) Subject to these regulations, the Board may require a confirmed member to retire—

(a) if he or she becomes inefficient or incapable, for a reason other than mental or physical deficiency or infirmity, of efficiently performing his or her duties; or

(b) if he or she is not suitable for the post he occupies or any other post to which he could be promoted or

transferred without his consent; or

(c) if the member has been employed for continuous period of not less than 12 months in a post of a lower grade than his or her own grade and the Board is satisfied that it is unable to transfer him or her within a reasonable period; or

(d) owing to the abolition of the member's post; or the reduction in or adjustment of the organisation of the Board; or

(e) if, at the termination of a period of secondment, the member has not been transferred to an approved service or appointed to a post in the Authority.

(f) if, in the opinion of the Board, his or her retirement is in the interests of the Authority.

(5) A member whom it is intended to retire in terms of subsection (2), (3) or (4) shall—

(a) be given notice of such intention by the Board; and

(b) be afforded an opportunity to make representations in writing concerning such intention to the Board, which shall consider such representations before deciding on whether or not to retire the member.".